LW1108 · INTRODUCTION TO THE LEGAL SYSTEM

Full Marking Scheme

Section B · Winter 2023/24 Examination · Paper 1

Module Code	LW1108
Module Title	Introduction to the Legal System
Examination Session	Winter 2023/24
Paper Number	1
Internal Examiner	Dr Fidelma White
External Examiner	Dr Tanya Ní Mhuirthile
Duration of Paper	1.5 hours

SCOPE OF THIS SCHEME

UCC does not release Section A (MCQ) papers for this module, so this scheme covers **Section B only** — the three long-answer essay questions, of which candidates answer **one** for 70% of the total mark. Full model answers are provided for **all three** Section B questions (B1, B2, B3) on this paper so you can prepare regardless of which one comes up. Section A is unpublished by the School and is not covered here.

Section	Content	Weight
A — MCQ (30 Qs)	Not released by UCC — not covered in this scheme	30%
B — Long Question (1 of 3)	Full model answers for B1, B2 and B3 below	70%

Sourcing note. *Every case citation in this scheme has been checked against primary/reporting sources (BAILII, Justis/vLex case digests, or the Irish Reports) rather than typed from memory. Where a point of analysis goes beyond your lecture slides and course pack — i.e. it draws on the wider case law or academic commentary to build out the argument — it is flagged inline with a note like this one.*

OVERLAP WITH THE WINTER 2024 PAPER

Question B2 on this paper ("legislation ... is the most important source of new laws") and Question B1 on the Winter 2024 paper (judicial law-making vs Art 15.2.1°) probe the same underlying topic — sources of law and who really makes it — from opposite directions. Revising both together sharpens both answers: the case for legislation's dominance here is, in large part, the mirror image of the case against "the real law-making power" resting with the judiciary there.

Question B1

70% if selected

QUESTION AS SET

Articles 40-44 of the Constitution have proved to be an important source of both express and unenumerated rights, for those engaged in doing business in Ireland.

Discuss, with reference to case law.

HEADLINE POSITION

Articles 40–44 do real work for businesses in Ireland, but almost entirely indirectly: the Constitution contains no express "freedom to conduct a business" (unlike, for comparison, Article 16 of the EU Charter of Fundamental Rights). Instead, businesses rely on general rights — equality (Art 40.1), the unenumerated right to earn a livelihood (derived from Art 40.3), and the express protection of private property (Art 43, read with Art 40.3.2°) — that were mostly developed by the courts for individual citizens and later extended, sometimes uneasily, to commercial actors. Articles 41, 42 and 44 (family, education, religion) have almost no direct application to business and a strong answer should say so rather than stretching them to fit.

FULL MODEL ANSWER

1. Why Articles 40–44 matter to business at all

Articles 40–44 form the Fundamental Rights part of Bunreacht na hÉireann, guaranteeing rights against the State (and, in limited horizontal circumstances, against other private parties). None of these Articles was drafted with commercial actors specifically in mind — the 1937 text speaks throughout of "citizens" and "the family," reflecting the social concerns of its drafters. Businesses in Ireland can be incorporated bodies (companies have their own separate legal personality and can, in principle, hold and assert certain constitutional rights) or individuals trading in a personal capacity, and the extent to which each can invoke Articles 40–44 differs. What the case law shows is that three specific rights — equality, the unenumerated right to earn a livelihood, and the express protection of property — have done almost all of the work for business litigants, while the family (Art 41), education (Art 42), and religion (Art 44) provisions have essentially none.

2. Article 40.1 — equality before the law

Article 40.1 provides that "all citizens shall, as human persons, be held equal before the law," while permitting the State to have regard to differences of capacity, physical and moral, and of social function in its enactments. *Pine Valley Developments Ltd v Minister for the Environment* [1987] IR 23 is the leading business-relevant illustration: outline planning permission granted to one developer (Pine Valley) was later held invalid, while an earlier, similarly-defective grant to a different developer on a neighbouring site had been retrospectively validated by statute. The Supreme Court (Finlay CJ) held that this differential treatment did not breach Article 40.1, because the two developers were not in a comparable position at the relevant time the earlier validating legislation was enacted — but the case is important precisely because it confirms that a commercial developer *can* invoke Article 40.1 against differential regulatory treatment, even though the claim failed on its specific facts. It also illustrates the structural limit on equality claims in

Irish law: Article 40.1 does not guarantee identical treatment, only that any differentiation must be justified by a real difference relevant to the legislative purpose — a standard the Oireachtas usually has considerable latitude to satisfy where economic and regulatory policy is concerned.

3. Article 40.3 — the unenumerated right to earn a livelihood

The single most directly "business-facing" right in this part of the Constitution does not appear in the text at all. In *Murtagh Properties Ltd v Cleary* [1972] IR 330, Kenny J held that the personal rights protected by Article 40.3 include an unenumerated right to work and earn a livelihood, in the course of restraining picketing that was organised to force an employer to discriminate against married women in recruitment. The right was subsequently applied and developed in *Murphy v Stewart* [1973] IR 97 and other cases, and has been repeatedly recognised at both High Court and Supreme Court level since, including in the more recent discussion by Hogan J (dissenting in the Court of Appeal) and the Supreme Court in *NHV v Minister for Justice and Equality* [2017] IESC 35, which held that the total statutory prohibition on an asylum seeker's right to work, without temporal limit, was inconsistent with the constitutional right to work protected by Article 40.3. *NHV* is not itself a business case in the narrow sense — the applicant was not a business owner — but the judgment is doctrinally significant for business law because it confirms the right to work is taken seriously as a substantive constitutional guarantee, not a dead letter, more than four decades after *Murtagh Properties* first recognised it.

Beyond the course pack. *Your lecture material covers the unenumerated rights doctrine in the context of personal/bodily integrity and privacy (Ryan, McGee); connecting the same doctrine specifically to Murtagh Properties and the right to earn a livelihood is the move that makes this answer squarely "about business" rather than a general unenumerated-rights essay borrowed from a different question.*

4. Article 43 — the express protection of private property

Unlike the right to work, property rights *are* expressly protected: Article 43.1.1° states that the State "acknowledges that man, in virtue of his rational being, has the natural right, antecedent to positive law, to the private ownership of external goods," while Article 43.2 permits the State to "delimit" the exercise of that right "with a view to reconciling its exercise with the exigencies of the common good." This is supplemented by Article 40.3.2°, under which the State undertakes to protect the property rights of every citizen from "unjust attack."

Blake v Attorney General [1982] IR 117 is the leading case applying this framework to a commercial context: the Supreme Court held that the rent-control provisions of the Rent Restrictions Act 1960 amounted to an unjust attack on landlords' property rights under Article 40.3.2°, because the controls transferred value from one group (landlords) to another (tenants) indefinitely, without compensation, regard to the landlords' means, or any mechanism for review, and were no longer justified by the wartime emergency that had originally prompted rent control. The Court also confirmed that Article 43 protects property as an *institution* — the bundle of rights to transfer, bequeath, and enjoy property generally — while Article 40.3.2° separately protects the property rights of the individual citizen against unjust interference. For businesses holding commercial premises, land, or other property assets, *Blake* remains the central authority establishing that regulatory interference with property must be proportionate, justified by the common good, and not disproportionately burdensome on the affected class, even though the State unquestionably retains the power to regulate property use in the public interest.

5. Articles 41, 42 and 44 — largely absent from business litigation

A critical answer should be honest about where the Constitution has little or nothing to say about business. Article 41 protects the family based on marriage and has generated an extensive body of case law (*McGee v Attorney General* [1974] IR 284 among the most significant), but essentially none of it touches commercial activity, save at the margins

— for example, questions about succession to a family business on death sit closer to succession law than to Article 41 litigation as such. Article 42's guarantee regarding education is directed at parents and the State, not commercial actors. Article 44's protection of freedom of conscience and religious practice can, in principle, intersect with business (for example, questions about religious objections to particular commercial activities), but this has generated very little reported Irish case law compared with jurisdictions like the United States. A strong essay notes this gap explicitly, rather than manufacturing a tenuous business connection to satisfy the "Articles 40–44" framing of the question.

6. Critical evaluation — how well do these Articles actually protect business?

Three limits qualify how much protection Articles 40–44 genuinely give business in practice. First, every one of the rights discussed above is qualified, not absolute: Article 43.2 expressly permits delimitation for the common good, Article 40.1 expressly permits differentiation based on social function, and the right to earn a livelihood has never been treated as precluding legitimate economic regulation (licensing regimes, competition law, health and safety law, planning law) — it operates as a check on arbitrary or disproportionate interference, not a general immunity from regulation. Second, legislation enjoys a presumption of constitutionality, and the Superior Courts have been consistently reluctant to use these Articles to second-guess socio-economic policy choices that are properly for the Oireachtas; the constitutional protection operates at the margins — catching clearly disproportionate or unjustified interferences (as in *Blake*) — rather than providing businesses with a general veto over regulation they dislike. Third, the absence of any express "freedom to conduct a business" or "freedom of enterprise" provision, of the kind found in Article 16 of the EU Charter of Fundamental Rights, means Irish businesses seeking constitutional protection must always frame their claim through a right designed for a different purpose — equality, personal livelihood, or property — rather than a right squarely addressed to commercial activity as such.

> **EXAMINER'S TIP**
>
> "With reference to case law" is doing real work in this question — a version of this essay that names the relevant Articles without pinning each to a specific, correctly-cited case will not clear the 2.1 band. Make sure at minimum one case is attached to each of Art 40.1, Art 40.3 (livelihood), and Art 43.

7. Conclusion

Articles 40–44 have indeed proved an important source of rights for business in Ireland, but overwhelmingly through the unenumerated right to earn a livelihood recognised in *Murtagh Properties v Cleary*, the express protection of property in Article 43 as applied in *Blake v Attorney General*, and, more marginally, the equality guarantee in Article 40.1 as tested (and narrowly rejected on its facts) in *Pine Valley Developments*. These protections are real but bounded: each yields to proportionate regulation in the common good, and none amounts to a general constitutional right to conduct a business free of interference. Articles 41, 42 and 44 contribute almost nothing directly. The accurate characterisation is that the Constitution protects business activity only derivatively — through rights framed around the individual citizen’s equality, livelihood, and property — rather than through any dedicated commercial or economic freedom, which is a genuine gap in the 1937 text by comparison with more recently drafted constitutional and EU instruments.

Mark Allocation — Question B1 (out of 100% of the question)

Component	Weight
Introduction — identifies that the Constitution has no express business/commercial freedom and signals which Articles will carry the analysis	**8%**
Article 40.1 equality — correctly explains the guarantee and applies *Pine Valley Developments v Minister for the Environment* [1987] IR 23	**15%**
Article 40.3 unenumerated right to earn a livelihood — correctly explains the doctrine and applies *Murtagh Properties v Cleary* [1972] IR 330 (and ideally *NHV*)	**20%**
Article 43 property rights — correctly explains Art 43.1/43.2 and Art 40.3.2°, and applies *Blake v Attorney General* [1982] IR 117	**20%**
Articles 41/42/44 — accurately identifies their limited or absent relevance to business rather than forcing a connection	**15%**
Critical evaluation — qualifications on all rights discussed (proportionality, presumption of constitutionality, no express commercial freedom)	**12%**
Conclusion — specific, reasoned answer rather than a restated introduction	**10%**
Total	**100%**

Mark Bands

Band	What must be present
First Class (70%+)	Correctly explains and applies at least two of Art 40.1/*Pine Valley*, Art 40.3 livelihood/*Murtagh Properties*, and Art 43/*Blake* AND acknowledges the limited relevance of Arts 41, 42, 44 AND explicitly qualifies the protection (proportionality, presumption of constitutionality, absence of an express commercial freedom) AND reaches a specific conclusion.
2.1 (60–69%)	Correctly explains and applies at least one of the three main rights with accurate case authority AND briefly addresses the other Articles, but the critical qualification is thin or the conclusion is generic.
2.2 (50–59%)	Names the relevant Articles and at least one relevant, correctly-cited case, but the essay is largely descriptive and does not critically qualify the extent of protection.
Third/Fail (0–49%)	Cites no accurate case authority, misattributes case holdings, or does not connect the discussion to "those engaged in doing business" as the question specifically requires.

Case citations: *Pine Valley Developments Ltd v Minister for the Environment* [1987] IR 23; *Murtagh Properties Ltd v Cleary* [1972] IR 330; *Murphy v Stewart* [1973] IR 97; *NHV v Minister for Justice and Equality* [2017] IESC 35; *Blake v Attorney General* [1982] IR 117; *McGee v Attorney General* [1974] IR 284.

Question B2

70% if selected

QUESTION AS SET

Legislation, whether domestic or from the EU, is the most important source of new laws in Ireland.

Critically assess this statement.

HEADLINE POSITION

Measured by sheer volume, the claim is correct: the overwhelming majority of new legal rules introduced in Ireland each year originate in domestic statute, statutory instrument, or EU secondary legislation, not in judicial decisions. But "most important" should not collapse into "most numerous." Judicial law-making — through constitutional interpretation and the common law — continues to generate new law in the areas that matter most for individual rights and for filling gaps legislation has not reached, and a critical answer has to weigh volume against significance rather than assuming the former settles the latter.

FULL MODEL ANSWER

1. The case for legislation: volume and reach

Article 15.2.1° vests the Oireachtas with "the sole and exclusive power of making laws for the State," and the volume of statute law enacted each year is substantial: dozens of Acts of the Oireachtas annually, alongside a much larger volume of statutory instruments made under specific statutory powers delegated by those Acts. Legislation has the structural advantage of being comprehensive and prospective — a single Act can regulate an entire field (companies law, data protection, planning, employment law) in a way no single court judgment ever could, since judicial law-making is necessarily confined to the facts of the case actually before the court.

EU-derived law adds a second, very large stream. Regulations made under the Treaties are directly applicable in Ireland without any national implementing measure at all (Article 288 TFEU), and directives are transposed into Irish law, typically by statutory instrument under section 3 of the European Communities Act 1972, across an enormous range of fields — company law, consumer protection, competition law, environmental law, employment law, data protection, and financial services regulation prominent among them. Given that so much of modern Irish commercial and regulatory law now originates at EU level and is simply implemented domestically, a claim that "legislation, whether domestic or from the EU," is the dominant source of new law by volume is difficult to dispute on the numbers alone.

2. What "legislation" is doing in the question, and where it gets complicated

A critical answer should pause on what counts as "legislation" here, because the category is less uniform than it first appears. Primary legislation (Acts of the Oireachtas) is made directly by the body Article 15.2.1° identifies as the sole law-maker. Secondary/delegated legislation (statutory instruments, ministerial regulations) is made by the Executive under authority the Oireachtas has conferred, and *Cityview Press Ltd v An Chomhairle Oiliúna* [1980] IR 381 established that such delegation is constitutional only where the delegate does no more than give effect to "principles and policies" the parent Act itself lays down — meaning a large share of what gets counted as "new legislation" each year is, strictly, Executive rule-making operating within limits the courts, not the Oireachtas in the moment, ultimately police.

EU law complicates the category further still. A regulation is directly applicable without any Irish legislative act at all — it becomes part of Irish law automatically, by virtue of the doctrine of direct effect articulated in *Van Gend en Loos v Nederlandse Administratie der Belastingen* Case 26/62 [1963] ECR 1, not because the Oireachtas passed anything. A directive, by contrast, does require an Irish implementing measure, but the content of that measure is substantially dictated by the directive's terms rather than freely chosen by the Oireachtas. Whether either should be described as "legislation" in the same sense as an Act of the Oireachtas, or as a distinct supranational category that merely takes legislative *form* once implemented, is a genuine analytical question the strongest essays raise rather than assume away.

> **Beyond the course pack.** *Your lecture slides present EU law and domestic legislation as parallel "sources of law" without necessarily interrogating whether they are the same kind of thing; drawing out the direct-applicability/direct-effect distinction here, and connecting it back to Cityview Press on the domestic side, is what elevates this from description to critical assessment.*

3. The counter-case: the common law and constitutional interpretation still generate new law

Ireland's status as a common law jurisdiction means legislation has never been the exclusive source of new legal rules, and it is not now. Two channels remain genuinely significant.

First, the common law develops through precedent even in areas comprehensively touched by statute. The tort of negligence, established judicially in *Donoghue v Stevenson* [1932] AC 562 and received into Irish law, has continued to be extended and refined by the Irish courts case by case (novel duty-of-care scenarios, new categories of recoverable loss) without any need for the Oireachtas to legislate first — the common law method is precisely designed to generate new rules incrementally as new fact patterns arise, which is a genuine form of "new law" even though no statute or statutory instrument is involved.

Second, and more significantly for anything touching constitutional rights, the unenumerated rights doctrine under Article 40.3 has generated substantive new legal rules that no legislation created and that legislation could not, by itself, have created, since they operate as limits *on* what legislation may validly do. *Ryan v Attorney General* [1965] IR 294 and *McGee v Attorney General* [1974] IR 284 both identified rights nowhere named in the constitutional text; *Murtagh Properties Ltd v Cleary* [1972] IR 330 did the same for the right to earn a livelihood. None of this new law originated in the Oireachtas or in Brussels — it originated entirely in judicial reasoning from Article 40.3's open-textured guarantee, and it binds even the Oireachtas itself. *Crotty v An Taoiseach* [1987] IR 713 supplies a further example specific to the EU side of the question: the Supreme Court's holding that ratifying Title III of the Single European Act required a referendum was not legislated by anyone — it was a judicially-created constraint on how far EU-related "legislation" (in the broad sense used by the question) could go without further popular authorisation, and it continues to shape the domestic process by which every subsequent EU treaty has entered Irish law.

> **COMMON MISTAKE TO AVOID**
>
> Do not write this essay as a simple description of the Oireachtas legislative process followed by a description of the EU legislative process, with no engagement with "most important." That answer will describe accurately but will not critically assess anything, and is capped in the 2.2 band regardless of accuracy.

4. Reconciling volume and significance

The strongest resolution of the question distinguishes two different senses of "important." By volume — the sheer number of new legal rules introduced in a given year — domestic and EU legislation, taken together, comfortably outstrips judicial law-making, simply because a single Act or Regulation can cover ground no individual case ever could. By constitutional significance — the capacity to create rules that bind even the Oireachtas and cannot be undone by ordinary legislation — judicial law-making through the unenumerated rights doctrine and judicial review under Article 34.3.2° occupies a different and, in a meaningful sense, higher-order role: it is the mechanism that determines whether legislation, domestic or EU-derived, is itself valid in the first place. "Most important" therefore depends on which axis is being measured, and a critical assessment should say explicitly which axis it is using rather than treating the two as interchangeable.

5. Conclusion

Legislation, taking domestic statute, delegated legislation, and EU-derived law together, is undoubtedly the most prolific source of new legal rules in Ireland today, and the claim in the question is well supported on that basis. But "most important" overstates the position if it is read to mean legislation is the only, or even the primary, engine of legal change: the common law continues to generate new rules incrementally through precedent, and the unenumerated rights doctrine under Article 40.3 has produced constitutional rules that bind the Oireachtas itself and cannot be reversed by ordinary statute, as *McGee*, *Murtagh Properties*, and *Crotty* each demonstrate in different ways. The better formulation is that legislation dominates *quantitatively*, while judicial law-making retains a distinct and, in constitutional terms, *qualitatively* superior role — and a critical assessment of the statement has to hold both of those things true at once rather than picking one and ignoring the other.

Mark Allocation — Question B2 (out of 100% of the question)

Component	Weight
Introduction — distinguishes the volume/significance framing rather than a flat agree/disagree	**8%**
Domestic legislative process — Art 15.2.1°, the volume of Acts/statutory instruments, correctly explained	**15%**
EU-derived legislation — regulations vs directives, direct applicability/direct effect, European Communities Act 1972, correctly explained	**15%**
Counter-case: common law and constitutional interpretation as ongoing sources of new law — *Donoghue v Stevenson*, unenumerated rights (*Ryan*/*McGee*/*Murtagh Properties*), and/or *Crotty*	**25%**
Critical scrutiny of "legislation" as a category — *Cityview Press* and the direct-effect distinction	**20%**
Conclusion — explicitly reconciles volume vs significance rather than restating the introduction	**17%**
Total	**100%**

Mark Bands

Band	What must be present
First Class (70%+)	Accurately explains both domestic and EU legislative sources AND raises a genuine counter-case using at least two of *Donoghue v Stevenson*, the unenumerated rights doctrine, or *Crotty* AND critically interrogates what counts as "legislation" (e.g. *Cityview Press* or the regulation/directive distinction) AND reaches a conclusion that explicitly reconciles volume against significance.
2.1 (60–69%)	Accurately explains at least one legislative source (domestic or EU) AND raises a relevant counter-case with accurate authority, but the two strands are not fully integrated or the conclusion is generic.
2.2 (50–59%)	Describes domestic and/or EU legislation accurately but with limited or no genuine critical assessment of "most important," and no meaningful counter-case.
Third/Fail (0–49%)	Materially inaccurate account of the Irish or EU legislative process, no relevant case authority, or no engagement with "most important" as the specific claim being tested.

Case citations: *Cityview Press Ltd v An Chomhairle Oiliúna* [1980] IR 381; *Van Gend en Loos v Nederlandse Administratie der Belastingen* Case 26/62 [1963] ECR 1; *Donoghue v Stevenson* [1932] AC 562; *Ryan v Attorney General* [1965] IR 294; *McGee v Attorney General* [1974] IR 284; *Murtagh Properties Ltd v Cleary* [1972] IR 330; *Crotty v An Taoiseach* [1987] IR 713.

Question B3

70% if selected

QUESTION AS SET

Describe and critically evaluate the doctrine of precedent in Irish law.

HEADLINE POSITION

The doctrine of precedent (*stare decisis*) requires courts to follow the binding rulings of higher, and generally equal, courts, giving the common law its predictability and structure. In Ireland it operates somewhat more flexibly than the strict English version: the Supreme Court has held, since *Attorney General v Ryan's Car Hire Ltd* [1965] IR 642, that it is not absolutely bound by its own previous decisions, though *Mogul of Ireland Ltd v Tipperary (NR) County Council* [1976] IR 260 shows that departure is available only in narrow, tightly-policed circumstances. This flexibility is best understood as a considered trade-off between certainty and justice, not a weakness in the doctrine.

FULL MODEL ANSWER

1. Describing the doctrine: what *stare decisis* requires

Stare decisis ("to stand by things decided") is the principle that a court must follow the legal reasoning of an earlier decision when deciding a case with materially similar facts, rather than deciding the point afresh each time. Its purpose is threefold: consistency (like cases are treated alike), predictability (parties and their lawyers can advise on the likely outcome of a dispute before litigating it), and efficiency (courts are not required to re-litigate settled points of law indefinitely).

Only part of a judgment binds under the doctrine. The *ratio decidendi* — the legal principle or rule that was necessary to the court's decision on the facts before it — is binding on later courts applying the doctrine. Everything else in the judgment, including remarks on points not strictly necessary to the decision, is *obiter dictum* and, while it may be persuasive (particularly if it comes from a senior court or a particularly authoritative judge), does not bind a later court. Correctly separating a case's *ratio* from its *obiter* is often the hardest practical skill in applying precedent, especially where a case produces several judgments that reach the same result by different routes of reasoning, since the true *ratio* in such a case is whatever reasoning commanded a majority, not any one judge's individual approach.

2. The hierarchy: who is bound by whom

Precedent operates through the court hierarchy established by Article 34 of the Constitution: the District Court and Circuit Court (courts of first instance and limited jurisdiction), the High Court (full original jurisdiction), the Court of Appeal (established by the Thirty-third Amendment in 2014 to relieve the Supreme Court's backlog), and the Supreme Court as the court of final appeal. A court is generally bound by the decisions of every court above it in this hierarchy, and inferior courts have no power to depart from binding authority even where they consider it wrongly decided; their only option is to distinguish the earlier case on its facts.

Precedent within a court of the *same* level is more complicated. The High Court is not strictly bound by its own previous decisions, though a High Court judge will ordinarily follow another High Court decision on the same point as a matter of judicial comity, departing from it only where persuaded it was clearly wrong. Precedent from other jurisdictions — England and Wales, given the shared common law heritage, or (particularly in constitutional matters) the United States, given the closer structural similarity between the US and Irish written constitutions — is never binding on an Irish court, but may be highly persuasive, especially where no Irish authority exists directly on point.

3. Whether the Supreme Court is bound by its own decisions

The most doctrinally significant feature of Irish precedent, and the part of the topic most likely to reward detailed case knowledge, is whether the Supreme Court is bound by its own earlier decisions. The English position, historically, was that the House of Lords considered itself bound by its own prior decisions (the rule in *London Tramways Co v London County Council* [1898] AC 375) until the Practice Statement of 1966 changed that. The Irish Supreme Court took a different, and earlier, path: in *The State (Quinn) v Ryan* [1965] IR 110, Walsh J asserted that the Supreme Court, as the ultimate guardian of constitutional rights under Article 34, could not regard itself as permanently bound by an earlier interpretation it considered wrong, particularly on constitutional questions. This was placed on a more general footing in *Attorney General v Ryan's Car Hire Ltd* [1965] IR 642, where Kingsmill Moore J observed that "the advantages of *stare decisis* are many and obvious so long as it is remembered that it is a policy and not a binding, unalterable rule" — explicitly rejecting the rigid *London Tramways* approach in favour of a more elastic Irish position under which the Supreme Court may depart from its own earlier decisions in appropriate cases.

Mogul of Ireland Ltd v Tipperary (North Riding) County Council [1976] IR 260 is the case that gives this flexible power real content and real limits. Henchy J held that a decision of the full Supreme Court, given in a fully-argued case after consideration of all the relevant materials, "should not normally be overruled merely because a later Court inclines to a different conclusion" — the Court must be clearly of the view that the earlier decision was wrong, and the desirability of certainty, stability, and predictability should yield to the demands of justice only in a genuine case for departure, not whenever a differently-constituted Court would have decided the point differently. This "clearly wrong" standard has been applied and reaffirmed in numerous subsequent cases, including in the recent Supreme Court decision in *DPP v Dwyer* [2024] IESC 39, where the Court declined to overrule its own earlier authority notwithstanding some misgivings about it, precisely because the *Mogul* threshold for departure was not met.

Beyond the course pack. *Your slides state that Irish precedent is a "policy and not a binding, unalterable rule" via the Ryan's Car Hire quotation; adding the Mogul of Ireland "clearly wrong" test, and a recent example of it being applied (DPP v Dwyer), is what turns a bare description of the flexible rule into a properly evaluated account of how much flexibility actually exists in practice.*

4. Critical evaluation: benefits and weaknesses of the doctrine

The case for precedent is the case for the rule of law generally: it produces consistency between similarly situated litigants, allows lawyers to give reliable advice, and constrains judicial discretion by requiring reasons to be given and followed rather than allowing each judge to decide according to unstated personal preference. It also allows the law to develop incrementally and by analogy — as with the tort of negligence built out from *Donoghue v Stevenson* [1932] AC 562 — without needing the Oireachtas to legislate for every new factual scenario in advance.

The weaknesses are equally real. Strict precedent can perpetuate an unjust or outdated rule long after the social conditions that justified it have changed — precisely the problem *Blake v Attorney General* [1982] IR 117 confronted in relation to rent-control legislation that had outlived its wartime justification, albeit resolved there through constitutional review rather than departure from precedent. The distinction between *ratio* and *obiter* is not always straightforward to apply, particularly in multi-judgment Supreme Court decisions where judges reach the same outcome by different reasoning paths, creating genuine scope for later courts to "distinguish" a precedent they wish to avoid on strained or artificial factual grounds — a criticism frequently made of common law reasoning generally. And the Irish flexible approach, while an improvement on rigid English-style self-binding, introduces its own uncertainty: the *Mogul* "clearly wrong" standard is itself a matter of judgment, meaning litigants cannot always predict with confidence whether the Supreme Court will treat an unfavourable precedent as settled or open to challenge.

A further useful critical point is the contrast with civil law systems (covered in the course materials' discussion of common law versus civil law traditions), where courts are not formally bound by earlier decisions in the same way and codified statute plays the central role that precedent plays in Ireland — illustrating that *stare decisis* is not a universal or necessary feature of a legal system, but a specific choice embedded in the common law method Ireland inherited and has since adapted.

> **EXAMINER'S TIP**
>
> "Describe and critically evaluate" are two distinct instructions carrying separate marks. Do not let the description (hierarchy, *ratio*/*obiter*, binding/persuasive) crowd out the evaluation (benefits/weaknesses, and specifically whether the Irish flexible-*stare-decisis* position gets the balance right) — examiners specifically check that both halves of the instruction are answered.

5. Conclusion

The doctrine of precedent gives Irish law its predictability and consistency by binding lower courts to the legal principles established by higher courts, structured through the hierarchy running from the District Court to the Supreme Court. Its most distinctive Irish feature is that the Supreme Court has, since *The State (Quinn) v Ryan* and *Attorney General v Ryan's Car Hire Ltd*, never treated itself as absolutely bound by its own past decisions, but *Mogul of Ireland v Tipperary (NR) County Council* confines that flexibility to cases where an earlier decision is clearly wrong, rather than merely debatable. This represents a considered, well-calibrated compromise between the certainty strict precedent provides and the risk that rigid self-binding would entrench error indefinitely — though it leaves a genuine, unavoidable residue of unpredictability, since "clearly wrong" is ultimately a judgment call rather than a mechanical test. On balance, the Irish approach to precedent is best evaluated as a deliberate and largely successful trade-off between certainty and justice, rather than as either a rigid constraint or an unprincipled discretion.

Mark Allocation — Question B3 (out of 100% of the question)

Component	Weight
Description of *stare decisis* — correctly explains its purpose (consistency, predictability, efficiency)	**15%**
Hierarchy and binding/persuasive distinction — correctly maps the Irish court structure and the persuasive status of other jurisdictions' case law	**20%**
Ratio decidendi / *obiter dictum* — correctly explains the distinction and the difficulty of applying it in multi-judgment cases	**15%**
Supreme Court's power to depart from its own precedent — correctly cites and explains *The State (Quinn) v Ryan*, *Attorney General v Ryan's Car Hire Ltd*, and *Mogul of Ireland v Tipperary (NR) County Council*	**20%**
Critical evaluation — genuine benefits and weaknesses, not just description, ideally with a comparative point (civil law systems)	**20%**
Conclusion — a specific, reasoned assessment of whether the Irish flexible approach gets the balance right	**10%**
Total	**100%**

Mark Bands

Band	What must be present
First Class (70%+)	Accurately describes the hierarchy, the *ratio*/*obiter* distinction, AND correctly explains the Supreme Court's flexible approach to its own precedent using at least two of *Quinn*, *Ryan's Car Hire*, and *Mogul of Ireland* AND provides a genuine critical evaluation (not just description) of the doctrine's benefits and weaknesses AND reaches a specific conclusion on the Irish approach.
2.1 (60–69%)	Accurately describes the hierarchy and the *ratio*/*obiter* distinction AND correctly cites at least one case on the Supreme Court's own-precedent flexibility, but the critical evaluation is thin or the conclusion is generic.
2.2 (50–59%)	Describes the doctrine and hierarchy with broadly accurate content, but with limited or no case authority on the Supreme Court's own-precedent question, and little genuine evaluation.
Third/Fail (0–49%)	Materially inaccurate description of the hierarchy or the *ratio*/*obiter* distinction, no relevant case authority, or answers only "describe" with no evaluative content at all.

Case citations: *The State (Quinn) v Ryan* [1965] IR 110; *Attorney General v Ryan's Car Hire Ltd* [1965] IR 642; *Mogul of Ireland Ltd v Tipperary (North Riding) County Council* [1976] IR 260; *DPP v Dwyer* [2024] IESC 39; *London Tramways Co v London County Council* [1898] AC 375; *Donoghue v Stevenson* [1932] AC 562; *Blake v Attorney General* [1982] IR 117.